

25NNCV03461 25NNCV03461

County: los-angeles

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Case Number: 25NNCV03461 Hearing Date: August 4, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

JANE DOE, by and through her

Power of Attorney, Jane Roe,

Plaintiff,

vs.

RG LEGACY I, LLC dba GOLDEN ROSE

CARE CENTER; GOLDEN STATE HEALTH CENTERS, INC.; BRYAN DAVID SMITH; and DOES 1
through 100,

Defendants.

Case

No.:

25NNCV03461

Hearing

Date:

August
4, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,
SET TWO AND REQUEST FOR SANCTIONS

MOVING PARTY: Plaintiff Jane Doe

RESPONDING PARTY: Defendant RG Legacy I, LLC dba Golden Rose
Care Center

The Court

considered the moving papers, opposition, and reply filed in connection with
the instant motion.

BACKGROUND

On May 21, 2025,
Plaintiff Jane Doe, by and through her Power of Attorney, Jane Roe
("Plaintiff") filed this action against Defendants RG Legacy I, LLC dba Golden
Rose Care Center ("Defendant"), Golden State Health Centers, Inc. ("Golden
State"), and Bryan David Smith ("Smith") (collectively, "Defendants"), alleging
ten causes of action for (1) dependent adult abuse and neglect, (2) dependent
adult abuse/physical abuse, (3) violation of resident's bill of rights, (4)
negligence, (5) sexual battery, (6) battery, (7) assault, (8) intentional
infliction of emotional distress, (9) negligence per se – rape, and (10)
negligent hiring, supervision, or retention of employee. Plaintiff was a
resident at Defendant's facility where she alleges that she was sexually
assaulted by Smith, one of Defendant's employees.

On July 23, 2025,
Defendants filed a motion to compel arbitration. The Court denied the motion to
compel arbitration on December 16, 2025.

On March 5, 2026, Plaintiff

filed an amendment to complaint for fictitious name, designating Defendant Shiftster LLC dba Eshyft ("Shiftster") as Doe 61.

On March 9, 2026, the Court entered default as to Smith.

On April 20, 2026, the Court entered default as to Shifster.

On May 1, 2026, Plaintiff filed the operative first amended complaint against Defendants, Shifster, and Tallis, LLC, removing the cause of action for negligence per se – rape.

On May 21, 2026, Defendant and Golden State filed a cross-complaint against Shiftster, alleging causes of action for (1) express contractual indemnity, (2) equitable/implied indemnity, and (3) contribution.

On July 2, 2026, Plaintiff filed the instant motion to compel Defendant's further responses to Form Interrogatories, Set Two (the "Form Rogs."), and a request for sanctions.

On July 22, 2026, Defendant filed an opposition.

On July 28, 2026, Plaintiff filed a reply.

LEGAL STANDARD

Within 30 days after service of interrogatories, the responding party must serve responses unless otherwise stipulated or ordered. (Code Civ. Proc., § 2030.260, subd. (a).)¿

Code of Civil Procedure section 2030.300 provides that a propounding party may move for an order compelling further responses if:¿

(1) an answer is evasive or incomplete;¿

(2) the exercise of option to produce documents is unwarranted or inadequate;
or

(3) an objection is without merit or too general.

(Code

Civ. Proc., § 2030.300, subd. (a).)

If a party fails to timely respond, objections are waived unless the Court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

A motion to compel further responses must be brought within 45 days of service of verified responses. (Code Civ. Proc., § 2030.300, subd. (c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

DISCUSSION

A. Timeliness

On February 11, 2026, Plaintiff served the Form. Rgs. on Defendant. (Petersen Decl., ¶ 3, Exh. A.) After an extension to respond, Defendant served unverified responses on March 24, 2026. (Petersen Decl., ¶ 4, Exh. C.) Defendant served verifications on April 6, 2026. (Petersen Decl., ¶ 5, Exh. E.)

Plaintiff has 45 days, plus two additional court days for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)), to file a motion to compel further responses. However, the parties agreed to a deadline of July 2, 2026 for Plaintiff to file a motion to compel further responses. (Petersen Decl., ¶ 11.) Therefore, plaintiff timely filed the motion filed on July 2, 2026.

B.

Separate Statement

California Rules of Court,
rule 3.1345 requires a separate statement for a motion to compel

further responses.

Plaintiff filed a separate statement in compliance with rule 3.1345(a).

C. Meet
and Confer

A motion to compel further responses must be accompanied by a meet and confer declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Plaintiff sent a meet and confer letter on May 7, 2026, which requested further responses to Form. Rog. No. 17.1 and explained Plaintiff’s position as to with the Form. Rogs. (Petersen Decl., ¶ 6, Exh. F.) The parties agreed to multiple extensions where Defendant had further time to serve further responses, but Defendant later indicated that they stood by their original response. (Petersen Decl., ¶¶ 7-9.) On June 18, 2026, the parties met and conferred telephonically and agreed they were at an impasse. (Petersen Decl., ¶ 10.)

The Court finds counsel’s meet and confer efforts sufficient and compliant with Code of Civil Procedure section 2016.040.

D. Form.
Rogs.

Plaintiff seeks a further response to Form Rog. No. 17.1, which asks whether Defendant’s response to each request for admission served with the Form. Rogs. is an unqualified admission. (See Petersen Decl., ¶ 3, Exh. A.) Form Rog. No. 17.1 requests that if the response is not an unqualified admission, Defendant provide the number of the request, all facts upon which Defendant bases its response, give the names, addresses, and telephone numbers of all persons who have knowledge of those facts, and identify all documents and other tangible things that support Defendant’s response and state the name, address, and telephone number of each

person who has each document or thing. (See Petersen Decl., ¶ 3, Exh. A.)

Defendant's response stated:

Objection. This request is unduly burdensome, harassing and oppressive. The information is equally available to the requesting party. Defendant further objects this interrogatory is vague and ambiguous. Calls for expert opinion and/or legal conclusion. Seeks to violate the attorney work product rule. It improperly attempts to shift Plaintiff's burden of proving Plaintiff's case, upon Defendant. This request is overbroad in time and seeks information that is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Subject to, and without waiving, said objections, Defendant responds:

(a)

Requests for Admission Nos. 19-47

(b) Golden State Health

Centers, Inc. ceased its affiliation with RG Legacy I, LLC dba Golden Rose Care Center on March 31, 2024. The INCIDENT occurred on or around July 20, 2024. Regardless of the time at issue, Golden State Health Centers, Inc. did not have operational control of the facility.

(c) Ragini Kaur, Administrator

of Golden Rose Care Center and Jacob Unger who are to be reached through the undersigned counsel.

(d) Unknown at this time.

Discovery is still continuing and Defendant reserves its right to amend and/or modify this response if non-privileged information responsive to this request becomes available.

(See Petersen Decl., ¶ 4, Exh. C.)

Plaintiff argues that Defendant's response is insufficient because it (1) combines Requests for Admission Nos. 19-47 into a single response, (2) identifies only two individuals without contact information, (3) fails to include information regarding whether Defendant

presently knows of supporting documents, and (4) relies on boilerplate objections.

In opposition, Defendant argues the information requested is unrelated to the subject matter of the pending action and requests a broad scope of information oppressive and burdensome to Defendant. Defendant further argues that any pre-trial discovery of Defendant's financial condition is barred by Civil Code section 3295, subdivision (c), and Defendant's privacy rights.

a. Relevance

"[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) "For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. ...

Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence. These rules are applied liberally in favor of discovery, and (contrary to popular belief), fishing expeditions are permissible in some cases." (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546 [internal citations omitted].)

Requests

for Admission, Nos. 19-47, which are disputed under Form Rog. No. 17.1, pertain to Defendant and Golden State's business relationship, financial arrangements, taxes, and structure from January 1, 2024 to the present. (See Petersen Decl., ¶ 3, Exh. B.) Plaintiff's first amended complaint alleges that Defendant and Golden State are directly and vicariously liable as a joint venture and alter-egos of one another, as they are united in their ownership and financial interests and are functionally inseparable. (FAC, ¶¶ 36-54.) Because Requests for Admission, Nos. 19-47 ask Defendant to admit information pertaining to Defendant and Golden State's business and financial relationship, Form Rog. No. 17.1, which asks Defendant to provide information about documents and persons that support Defendant's responses, would assist Plaintiff in evaluating the case and preparing for trial. The witnesses and documents sought to be identified under Form. Rog. No. 17.1 could directly assist in Plaintiff proving that Defendant

and Golden State are jointly liable. Therefore, the Court finds the information requested pursuant to Form. Rog. No. 17.1 relevant to the subject matter of the pending action.

b. Oppressive
and Burdensome

“The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or under burden and expense.” (Code Civ. Proc., § 2030.090, subd. (b).) Courts must restrict discovery if the sought-after information is unreasonably cumulative or duplicative, is obtainable from another source that is more convenient, less burdensome, or less expensive, or if the intrusiveness of the request clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.) The party opposing discovery based on burden has an explicit obligation to supply the factual basis showing the actual quantum of work required to respond. (Williams v. Superior Court (2017) 3 Cal.5th 531, 549.)

As the objecting party, Defendant had the burden of supplying supporting evidence, but in response to Plaintiff’s motion to compel Defendant offered none. Defendant merely argues that the requested is too broad and constitutes a fishing expedition. (Opp., 5:8-10.) Alternatively, Defendant argues Golden Rose already produced discovery bearing on Defendant’s operations. (Opp., 5:22-23.) However, given the lack of supporting evidence, the Court has nothing to base a comparative judgment that the responsive burden would be undue or excessive relative to the likelihood or admissible evidence being discovered. Similarly, aside from arguing that the request is at Defendant’s sole expense, Defendant offers no explanation of how any intrusiveness would clearly outweigh Plaintiff’s discovery interest. Therefore, the Court does not find that Form. Rog. No. 17.1 is oppressive or burdensome.

c. Civil
Code section 3295, subdivision (c)

Civil
Code section 3295 prohibits pretrial discovery of defendant’s financial

condition unless the plaintiff obtains a court order permitting the discovery. However, the statute does allow a plaintiff, without prior court order, to subpoena documents or witnesses to be available at trial to establish financial condition or require the defendant, identify relevant and admissible documents in their possession, and to identify employees or related witnesses competent to testify to those facts. (Civ. Code, § 3295, subd. (c).) Additionally, Civil Code section 3295 does not apply when financial information “goes to the heart of the cause of action itself.” (Rawnsley v. Superior Court (1986) 183 Cal.App.3d 86, 91.)

Form.

Rog. No. 17.1 asks Defendant to give the names, addresses, and telephone numbers of all persons who have knowledge of those facts and identify all documents and other tangible things that support Defendant’s response and state the name, address, and telephone number of each person who has each document or thing. (See Petersen Decl., ¶ 3, Exh. A.) This is expressly permitted under Civil Code section 3295, subdivision (c). Form. Rog. No. 17.1 does not request that Defendant provide any of the documents that detail its financial information. Accordingly, the Court does not find that Form. Rog. No. 17.1 violates Civil Code section 3295.

d. Defendant's
Right of Privacy

Individuals

possess a legally recognized privacy interest in their personal financial affairs and records under the California Constitution. (Look v. Penovatz (2019) 34 Cal.App.5th 61, 73.) However, the constitutional right to privacy secured by Article 1, Section 1 of the California Constitution is strictly limited to natural persons and does not apply to corporations or other artificial entities. (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755-756.) “The corporate right to privacy is a lesser right than that held by human beings and is not considered a fundamental right.” (Id. at p. 756.) Because an entity’s privacy right is not constitutionally protected, discovery disputes involving a defendant entity’s financial privacy rights are resolved using a balancing test rather than the strict scrutiny applied to individuals. (Ibid.) To determine whether discovery infringes upon an artificial entity’s privacy interests, courts will balance the discovery’s relevance to the subject matter of the pending dispute and whether the discovery appears reasonably calculated to lead to the

discovery of admissible evidence against the entity's interest in privacy. (Ibid.)

As

discussed above, the witnesses and documents sought to be identified under Form. Rog. No. 17.1 would assist in Plaintiff proving that Defendant and Golden State are jointly liable and are relevant to the subject matter of the dispute.

Further, Form. Rog. No. 17.1 does not request that Defendant provide any of the documents that detail its financial information, which supports a low level of invading Defendant's privacy interests. Contrarily, Plaintiff has a significant interest in acquiring the names of witnesses and documents that could help them prepare for trial. Therefore, the Court does not find that Defendant's privacy interests are invaded.

Accordingly,

the Court GRANTS Plaintiff's motion to compel Defendant's further responses to the Form. Rog. 17.1

E.

Request for Sanctions

Plaintiff

requests that the Court impose monetary sanctions in the amount of \$1,335.00 on Defendant for misuse of the discovery process. (Petersen Decl., ¶ 13.)

Code

of Civil Procedure section 2023.030 authorizes monetary sanctions for misuse of the discovery process. Misuse of the discovery process includes "[m]aking or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." (Code Civ. Proc., § 2023.010, subd. (h).)

Defendant

unsuccessfully opposed the instant motion to compel discovery. Notably, Defendant's opposition to Plaintiff's motion to compel does contain an argument that it acted with substantial justification. Therefore, the Court finds Plaintiff is entitled to monetary sanctions.

Plaintiff's

counsel requests \$1,335.00 for this motion based on an hourly rate of \$425.00 and estimated two hours of attorney work and a filing fee of \$60.00. (Petersen Decl., ¶ 13.) The Court finds the request reasonable. Accordingly, the Court grants Plaintiff's request for \$1,335.00 in monetary sanctions, imposed jointly

and severally against Defendant and counsel of record.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff Jane Doe's motion to compel Defendant RG Legacy I, LLC dba Golden Rose Care Center's further response to Form Interrogatories, Set Two, No. 17.1. Defendant shall provide a further verified response without objection within 20 days of notice of this order.

The Court GRANTS Plaintiff's request for monetary sanctions. Monetary sanctions are imposed against Defendant and counsel of record, jointly and severally, in the amount of \$1,335.00, payable to counsel for Plaintiff within 20 days of notice of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Sarah
J. Heidel

Judge of the Superior Court